

Court No. - 32

Case :- WRIT - C No. - 28288 of 2018

Petitioner :- Raj Kumar Patel

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Rajesh Kumar Tiwari

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

On the request of learned counsel for the electricity department, put up this matter as fresh on 28.8.2018 to enable him to seek instructions in the matter.

Order Date :- 21.8.2018

MLK

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Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Rajesh Kumar Tiwari

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

This writ petition has been filed, *inter alia*, for the following reliefs:

"(i). Issue a writ, order or direction in the nature of certiorari quashing the demand notice dated 25.07.2018 issued by the respondent No.2 against the father of the petitioner since deceased.

(ii). Issue a writ, order or direction in the nature of mandamus directing the respondent authority to not adopt any coercive method against the petitioner in respect of the demand notice dated 25.07.2018."

Learned counsel for the petitioner submits that the impugned notice has been issued by the Electricity department without following the provisions contained under the U.P. Electricity Supply Code, 2005.

Sri Mahboob Ahmad, learned counsel for the respondent No.2, today, has served the provisional assessment order to the petitioner.

Learned counsel for the petitioner after arguing the matter at length confined his prayer to the extent that the petitioner may be permitted to make a fresh objection/ representation before the concerned authority in respect of his grievances with a direction to the concerned authority to decide the same within a stipulated period.

Considering the facts and circumstances of the case and without expressing any opinion on the merits of the case, the petitioner is directed to appear on 12th September, 2018 before the Respondent No.2, Executive Engineer and make a fresh representation/ objection ventilating his grievances along with the certified copy of this order enclosing therewith, a copy of the writ petition along with its Annexures and, if any such representation/ objections is made, the said authority shall make all endeavour to consider and decide the same by a speaking order after considering the representation/ objections of the petitioner in accordance with law expeditiously preferably

within 30 days from the date of receipt of the said representation/objection after affording opportunity of hearing to the petitioner.

For a period of 45 days from today or till the disposal of the representation/ objection, whichever is earlier, no coercive action shall be taken against the petitioner.

With the above observations/ directions, this writ petition stands disposed of.

Order Date :- 28.8.2018

Atmesh